

Whistleblowing Policy and Procedure



Molana Tariq Jamil Foundation

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Molana Tariq Jamil Foundation, also referred to as “MTJF” or “the Foundation” in this policy, has developed this Whistleblowing Policy and Procedure (referred to as Policy) to demonstrate its commitment to unbiased and accountable management.

1 Statement of Intent

The whistleblowing policy aims to create work environment where employees, donors, beneficiaries, vendors, contractors and other stakeholders are able to raise concerns on unethical, unlawful, irregularities, or malpractices, affecting MTJF, without the fear of harassment and / or victimization and with an assurance that their concerns will be taken seriously by timely investigation in appropriate manner and outcome will be duly communicated.

2 Scope

There are existing policies and procedures in place to enable employees to lodge a grievance complaint relating to their own employment and / or with other co-workers.

This Policy is intended to cover major concerns that fall outside the scope of other policies and procedures. The report should however not be based on mere speculation, rumors, malice or gossip but on personal knowledge of verifiable facts or circumstances to indicate that reported misconduct has occurred or likely to occur.

Reportable misconduct include but not limited to the followings;

- All forms of financial malpractices or impropriety such as fraud, corruption (payment in exchange for awarding contracts etc.), the unauthorized use of funds, bribery or theft,
- Actions detrimental to health and safety or the environment concerning the workplace and / or general public,
- Any form of criminal activity,

- Improper conduct or unethical behavior that undermines universal and core ethical values such as integrity, respect, honesty, accountability, fairness etc.,
- Failure to comply with regulatory directives, administrative or internal policy framework,
- Failure to comply with legal obligations or statutes,
- Other forms of corporate governance breaches,
- Insider abuse,
- Non-disclosure of interest,
- Conduct translating to gross waste of resources and
- Attempt to conceal any of the above listed acts.

3 Aims of the Policy

It is intended to encourage employees, ex-employees and other relevant stakeholders to report reportable misconduct of employees, management and other stakeholders to appropriate authorities in a confidential manner without any fear of harassment, intimidation, victimization or reprisal of anyone for raising a concern under this Policy. Specific objectives of the Policy are to;

- Encourage timely reporting of alleged malpractices / misconduct,
- Provide means for discreet and confidential channel for escalation of concerns,
- Report without fear of reprisal,
- Ensure consistent and timely Foundational response to reported misconduct,
- Ensure appropriate oversight by the Board of Trustee's,

- Serve as a mean of preventing and deterring misconduct that may be contemplated but has not yet taken place,
- Promote and development of a culture of openness, accountability and integrity.

4 Safeguards to Whistleblower

The MTJF recognizes that the decision to report a misconduct can be a difficult one to make. If what a member of staff or a relevant stakeholder is saying is true, they should have nothing to fear because they will be doing their duty to the Foundation. Following safeguards to whistleblowers will be provided.

4.1 Harassment or Victimization

Employees reporting a misconduct are assured of protection against unfair dismissal, victimization or unwarranted disciplinary action, even if the concerns turns out to be untrue, which they have reported in good faith.

Person(s) who victimize or retaliate against the whistleblower will be subject to disciplinary actions.

4.2 Confidentiality

The identity of the whistleblower will not be divulged without his / her consent. However, if investigation leads to legal proceedings, the company may be required or legally obliged to reveal his / her identity. If this is the case, MTJF will take all reasonable steps to ensure that the whistleblower suffers no harm.

The whistleblower should also be required to keep confidential that a report has been filed, the nature of concerns and the identity of those involved.

5 Types of Whistleblowing

There are two types of whistleblowers

- Internal Whistleblower

- External Whistleblower

5.1 Internal Whistleblower

Reporting by employees, ex-employees, volunteers and interns of misconduct. It provides assurance that those who disclose such information will be adequately protected and action would be taken on the disclosure.

5.2 External Whistleblower

Donors, beneficiaries, vendors, contractors and other relevant stakeholders who report a misconduct.

6 Anonymous Allegations

This policy encourages staff to put their name to their allegation whenever possible. Concerns expressed anonymously are much less powerful but will be considered at the discretion of the MTJF management.

In exercising this discretion the factors to be taken into account would include;

- The seriousness of the issues raised,
- The credibility of the concern and
- The likelihood of confirming the allegation from attributable sources.

7 Untrue Allegations

If a member of staff makes a genuine allegation in good faith, which is not confirmed by subsequent investigation, no action will be taken against them. If, however, they make malicious or vexatious allegations, particularly if they persist with making them, then disciplinary action may be taken against the individual concerned.

8 Whistleblowing Procedure

Whistleblowing procedure provides a mechanism for reporting any instances of misconduct at work and reassurance that exposing wrongdoing would not pose any risk to the whistleblower. The whistleblower should however consider that they are making their disclosure within the scope of this Policy.

The whistleblower may raise concerns either by declaration or anonymously. He can do so by;

- Using Whistleblowing Reporting Form (*Annexure – 2*) and sending it dedicated e-mail address or to the Internal Auditor, Audit Committee, Chief Finance Officer, Chief Executive Officer or Chairman.
- A formal letter to Internal Auditor, Audit Committee, Chief Financial Officer, Chief Executive Officer or Chairman.
- Calling on dedicated phone number.
- Mailing details of the misconduct on dedicated whistleblowing e-mail address.

Where the allegation is received by staff other than the CFO / CEO, Internal auditor, the staff receiving the detail of misconduct shall be required to document and forward it to the Internal Auditor, Audit Committee, Chief Financial Officer, Chief Executive Officer or Chairman.

If the allegations are related to Internal Auditor, Chief Financial Officer or Chief Executive Officer or any of Executive Management Members such allegations shall be communicated to Audit Committee or Chairman.

The allegations should be reported using Whistleblowing Reporting Form (*Annexure – 2*) or otherwise must contain the detail of the misconduct supported by documentary evidences if any, the employee(s) who is alleged of misconduct and if possible the detail of complainant.

Upon receipt of the allegation the recipient in consultation with the Audit Committee and / or Chairman within seven (7) days of the receipt will forward the details of allegation to the Board of Trustee's after ascertaining whether it is in the scope of this Policy and validating the allegation.

9 Composition of Investigation Committee

The Board of Trustees will make an Investigation Committee (IC) to investigate the allegation. The composition of IC depends upon the seriousness / sensitivity of the issue.

The Chief Executive Officer has overall responsibility for the maintenance and operation of this Policy. He will maintain a record of any allegation raised and the outcome (but in a form that does not endanger the staff's confidentiality).

9.1 Whistleblowing Investigation

The IC will undertake the investigation to;

- Establish if a wrongdoing has occurred based on the allegation(s) raised, and if so, to what extent and
- To minimize the risk of further wrongdoing, prevent any further loss of funds / assets, damage to the reputation of MTJF.

During the investigation, if necessary, the IC may sought further information from the whistleblower and where necessary, the whistleblower shall be kept updated with the progress.

The format and the length of the investigation will vary depending upon the nature and particular circumstances of each compliant made. Some allegations may be resolved by agreed action without the need of any further investigation and some allegations may be referred to the police.

The IC shall, upon conclusion of the investigation, forward a detailed report of the investigation along with recommended penalties and recommendation to the Board of Trustees for appropriate actions.



Molana Tariq Jamil Foundation
Near Madina Nursery, Makhdum Pur Road Tulamba

Annexure – 1 Undertaking of Understanding of Whistleblowing Policy and Procedure

Date _____

Name of Employee _____

Employee Number _____

Date of Joining _____

Department _____

Job Title _____

Location _____

I hereby confirm that I have read, understood, and acknowledge to adhere to the content of the MTJF Whistleblowing Policy and Procedure and further confirm that I will comply fully to the extent written therein.

Signature

Annexure - 2 Whistleblowing Report Form

Name _____

Designation _____

Department

Incident Location

Incident Date & Time

Other Parties Involved

[illegible]

Name _____

Contact No. _____

Address

Occupation

Signature

Date